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Tentative Ruling

Re: **Yang v. Fresno Unified School District**
Superior Court Case No. 24CECG05246

Hearing Date: June 10, 2026 (Dept. 502)

Motion: Motion for summary judgment

If oral argument is timely requested, it will be entertained on Wednesday, June 24, 2026, at 3:30 p.m. in Department 501.

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 06/09/26
(Judge's initials) (Date)

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Tentative Ruling

Re: ***Kimie Brown, as heir, next of kin, and successor of interest for decedent Pearline Brown v. David Koomjan***
Superior Court Case No. 25CECG00856

Hearing Date: June 10, 2026 (Dept. 502)

Motion: By Defendant David Mitchell Koomjan to Set Aside Default

**If oral argument is timely requested, it will be entertained on
Wednesday, June 24, 2026, at 3:30 p.m. in Department 501.**

Tentative Ruling:

To grant and strike the entry of default entered August 25, 2025, against defendant David Mitchell Koomjan. (Code Civ. Proc., § 473.5.)

Defendant David Mitchell Koomjan is directed to file a proposed responsive pleading within five days of service of the order by the clerk.

Explanation:

Defendant David Mitchell Koomjan ("Defendant") moves to set aside default, entered against him on August 25, 2025, pursuant to relief afforded under Code of Civil Procedure section 473.5.

Defendant argues that they did not receive actual notice of the action, and move under Code of Civil Procedure section 473.5 to set aside the entry of default.

The court is empowered to relieve a party "upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) The trial court has broad discretion to vacate the judgment and/or the clerk's entry of default that preceded it. That discretion can be exercised only if the moving party establishes a proper ground for relief, by the proper procedure, and within the statutory time limits. (*Cruz v. Fagor America, Inc.* (2007) 146 Cal.App.4th 488, 495.) "Because the law favors disposing of cases on their merits, 'any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations]. Therefore, a trial court order denying relief is scrutinized more carefully than an order permitting trial on the merits' (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233 [superseded by statute on other grounds])." (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 135.) Where the party seeking relief seeks such relief promptly and no prejudice will result to the opposing party, "very slight evidence will be required to justify a court in setting aside the default." (*Elston v. City of Turlock, supra*, 38 Cal.3d at p. 233.)

If a party does not receive actual notice from service of a summons, an entry of default or a default judgement may be set aside under Code of Civil Procedure section

Defendant makes a sufficient showing under Code of Civil Procedure section 473.5 such that the court may set aside the entry of default. Here, David Mitchell Koomjar has been deceased for the duration of the action, so service to his liability insurer, CSAA Insurance Exchange, was permitted under Probate Code sections 550 and 552. It appears that the designated agent for CSAA Insurance Exchange was not served the summons and complaint or notice of the entry of default. Counsel for CSAA Insurance Exchange filed a timely motion to set aside the entry default and filed a declaration stating that they did not have actual notice of the action until after the entry of default.

For the above reasons, the motion is granted and the default entered on August 25, 2025, as to Defendant is stricken.

Tentative Ruling

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